

The Joint Electricity Regulatory Commission for the States of Manipur and Mizoram (Salaries, Allowances and other Conditions of Service of Chairperson and Members) Rules, 2006

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UNION OF INDIA

India

The Joint Electricity Regulatory Commission for the States of Manipur and Mizoram (Salaries, Allowances and other Conditions of Service of Chairperson and Members) Rules, 2006

Rule

THE-JOINT-ELECTRICITY-REGULATORY-COMMISSION-FOR-THE-STATES-OF-MANIPUR-AND-MIZORAM-SALARIES-ALLOWANCES-AND-OTHER-CONDITIONS-OF-SERVICE-OF-CHAIRPERSON-AND-MEMBERS-RULES-2006 of 2006

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The Joint Electricity Regulatory Commission for the States of Manipur and Mizoram (Salaries, Allowances and other Conditions of Service of Chairperson and Members) Rules, 2006

Published vide Notification No. G.S.R. 480(E), 14th August, 2006

Ministry of Power

G.S.R. 480(E). - In exercise of the powers conferred by section 89 of the Electricity Act 2003, (36 of 2003) the Central Government hereby makes the following rules, namely :-

1.

Short title and commencement.

(1)

These rules may be called the Joint Electricity Regulatory Commission for the States of Manipur and Mizoram (Salaries, Allowances and other Conditions of Service of Chairperson and Members) Rules, 2006.

(2)

They shall come into force on the date of their publication in the Official Gazette.

2.

Definitions.

- In these rules, unless the context otherwise requires, -

(a)

"Act" means the Electricity Act 2003;

(b)

"Commission" means the Joint Electricity Regulatory Commission for the States of Manipur and Mizoram constituted under section 83 of the Act;

(c)

Words and expressions used herein and not defined but defined in the Act, shall have the meanings respectively assigned to them in the Act.

3.

Oath of Office and secrecy.

- A Member of the Commission shall, before entering upon his office, subscribe to an oath of office and secrecy before the Minister in-charge of the Ministry of Power (Union Government) and the oath of office and secrecy shall be administered in the following form:-

Oath of secrecy

I, _____, do swear in the name of God and solemnly affirm that I shall not directly or indirectly communicate or reveal to any person or persons any matter which shall be brought under my consideration or shall become known to me as the Chairperson or Member of the Joint Electricity Regulatory Commission for the States of Manipur and Mizoram except as may be required for the due discharge of my duties as such Chairperson or Member.

Oath and affirmation of allegiance to Constitution

I, _____, having been appointed Member of the Joint Electricity Regulatory Commission for the States of Manipur and Mizoram, do swear in the name of God and do solemnly affirm that I shall bear true faith and allegiance to the Constitution of India as by law established, that I shall uphold the sovereignty and integrity of India, that I shall duly and faithfully and to the best of my ability, knowledge and judgement perform the duties of my office without fear or favour, affection or ill-will and that I will uphold the Constitution and the laws of the land.

4.

Pay.

- A Member shall be entitled to receive pay in the scale of pay of Rs.22400-525-24500 per month.

Provided that in case a person appointed as the Member is in receipt of pension from;

(a)

Union Government including Railways, Defence, Posts and Telecommunication; or

(b)

State Government or Union Territory Administration; or

(c)

Public Sector Undertaking, Local Body, Autonomous Body like University or Semi-Government Organization like Port Trust;

the pay of such person shall be reduced by the gross amount of pension [as illustrated in the Central Civil Services (fixation of pay of re-employed pensioners) Orders, 1986] drawn by him:

Provided further that a Member shall be entitled to receive admissible allowances on the original basic pay before such fixation of pay.

5.

Dearness allowance and city compensatory allowance.

- A Member shall be entitled to receive dearness allowances and city compensatory allowance, and other allowances at the rate admissible to a Group 'A' Officer of the Central Government drawing an equivalent pay.

6.

Leave.

- A Member shall be entitled to 30 days of earned leave for every year of service and the payment of leave salary, during leave, shall be governed under the provisions of rule 40 of the Central Civil Services (Leave) Rules, 1972.

7.

Leave sanctioning authority.

- In the case of the Chairperson, the Minister-in-charge of the State Government which he represents in the Commission, and in the case of a Member, the Chairperson, shall be the leave sanctioning authority.

8.

Provident fund.

- A Member shall be governed by the Contributory Provident Fund Rules (India), 1962 and no option to subscribe under the provisions of the General Provident Fund Rules (Central Services), 1960 shall be available. No pension or gratuity shall be admissible for service rendered in the Commission.

9.

Travelling allowances.

(1)

A Member while on tour within India or on transfer (including the journey undertaken by self and family to join the Commission or on the expiry of term with the Commission to proceed to his home town with family) shall be entitled to the journey allowance, daily allowance and transportation of personal effects at the same scales and at the same rates as are applicable to a Group 'A' Officer of the Central Government drawing an equivalent pay.

(2)

Foreign tours to be undertaken by a Member shall require prior approval of the State Government which he represents in the Commission and necessary clearances of the Central Government.

Provided that the daily allowance and provision of hotel accommodation during the period of tour abroad shall be in accordance with such orders of the Central Government as are applicable to Group "A" officers of the Central Government drawing an equivalent pay and as per the economy instructions or other instructions issued by the Ministry of Finance from time to time.

10.

Leave travel concession.

- A Member shall be entitled to leave travel concession at the same scale and at the same rate as admissible to group 'A' officers of the Central Government drawing an equivalent pay.

11.

Accommodation.

(1)

A Member shall be entitled for residential accommodation as per norms of Government of Mizoram.

Provided that for such accommodation which is according to and within the entitlement of the Member the standard licence fee shall be the same as in the case of a Group "A" officer of similar status of the Central Government posted at Aizwal.

(2)

In case Government of Mizoram do not provide residential accommodation to a Member, he shall have the option of claiming house rent allowance as admissible to Group A officers of similar status of the Central Government posted at Aizwal.

12.

Transport.

- A Member shall be allowed the option to make use of an official vehicle or reimbursement of such amount as may be fixed by the Central Government from time to time in respect of a Group "A" officer of the Central Government drawing an equivalent pay for the use and maintenance of his personal car.

13.

Medical treatment.

- A Member shall be entitled to medical reimbursement and facility as admissible to a Group 'A' officer of the Central Government drawing an equivalent pay.

14.

Telephone facility, official meeting and entertainment expenses.

- A Member shall be eligible for telephone facilities, official meetings and entertainment expenses as admissible to a Group "A" officer of the Central Government drawing an equivalent pay.

15.

Other conditions of services.

- Other conditions of service of a Member, with respect to which no express provision has been made in these rules, shall be such as are admissible to a Group "A" officer of the Central Government drawing an equivalent pay.

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